

Missouri section 311.326 filing guide

Correct route and court

This application uses section 311.326 only. Use the court identified in the application, confirmed from the original record.

An application filed with the clerk of the court in which the participant was sentenced (§ 311.326). No Office of the State Courts Administrator form exists for this section, so the application and proposed order are LegalEase-drafted against the statutory contents, and the track carries a local-form override for any court that publishes its own. Whether the application opens a new case or proceeds under the original case number is local practice confirmed with the clerk.

Confirm that the court accepts this custom application and proposed order. Use any mandatory local form instead. Confirm whether the application uses the original case number or opens a new case. A new case number and judge assignment remain for the clerk.

Record checks before filing

Certified docket sheet and judgment from the sentencing court: Ask the clerk for a certified copy of the docket and the judgment. It establishes the statute of conviction — which must be § 311.325 rather than a local ordinance — the sentencing date and the case number.

Missouri Department of Revenue driver record: Order your Missouri driver record. It is where an administrative alcohol-related suspension or revocation appears, and § 302.525.3 makes any such action an enforcement contact that disqualifies you under § 311.326 even though it was never a criminal conviction. A participant answering this question from memory of court cases will very often be wrong.

Out-of-state driver records: Request your driver record from each state where you have been licensed. § 302.525.3 counts a suspension, revocation or conviction in any other state.

Missouri State Highway Patrol criminal record: Order your own criminal record. It supports the agency list and the no-other-alcohol-related-offense condition. Confirm current fees with the Patrol.

Alcohol-related enforcement contacts - section 302.525.3

For purposes of this section, "alcohol-related enforcement contacts" shall include any suspension or revocation under sections 302.500 to 302.540, any suspension or revocation entered in this or any other state for a refusal to submit to chemical testing under an implied consent law, and any conviction in this or any other state for a violation which involves driving while intoxicated, driving while under the influence of drugs or alcohol, or driving a vehicle while having an unlawful alcohol concentration.

An administrative suspension or chemical-test refusal can matter even without a criminal conviction. Compare actual Missouri and out-of-state driver records. Stop for legal help if an entry is ambiguous; this packet does not decide the legal meaning of an individual entry.

Timing, first offense and once-in-a-lifetime choice

The earliest application is at age twenty-two: at least one year after the twenty-first birthday. The clock does not start at conviction. The conviction must be under Missouri section 311.325, not a local ordinance.

Section 311.326 permits one expungement under that section. The application states firstness and other qualifying facts only as the participant's own allegations; the court determines them. Relief is mandatory when the statutory findings are made.

Review every allegation and record before personally signing and dating. Ask the clerk whether local acknowledgment or notarization is required; no notarization is prescribed by this section.

Official companions and protected blanks

FI-05 is included only when a new circuit or associate circuit case is opened and the court requires it. Its Case Type Code and Case Type Description remain REQUIRED BEFORE FILING for clerk confirmation: the held case-types list does not name this specific statute. Do not borrow X5 or XG from a different route. The clerk supplies the Filing Date, Case number and Judge or Division. The full official trailing pages and submitter fields are retained.

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GN10 is included only when the applicant requests a waiver, supplies actual financial facts and confirms the court accepts it. Review all income, spouse/dependent facts, expenses, property and debt entries, then personally sign Your Signature and Date. GN10 Respondent's Address/Telephone requires clerk confirmation before filing when multiple agency respondents are listed. Do not fill the clerk's Date File Stamp or court assignment fields.

Leave every proposed-order finding, grant/deny choice, court direction, order date and judicial signature for the court. Do not obtain a signed order as a prerequisite to filing.

Filing costs and waiver

Not fixed by the section and county-variable. The participant confirms the filing fee and costs with the clerk of the sentencing court. No fee figure is published on this track.

GN10 under Rule 77.03 and § 514.040 where the sentencing court accepts the statewide form.

Record retrieval costs are separate from filing costs. No fixed filing fee or waiver outcome is promised.

Hearing, notice and actual service

none prescribed. § 311.326 names no notice recipients, no objection period and no hearing, and says only that the court determines the conditions upon review. Whether the sentencing court notices the prosecuting or city attorney is local practice, and the packet directs the participant to ask the clerk rather than assuming either way.

Not prescribed by the section. A certificate of service is included for the participant to complete only if the clerk directs that the named respondents be served, and is left blank otherwise.

Ask the clerk who gives any required notice, how, to whom, the copy count and whether any hearing is scheduled. The certificate is used only for court-directed actual service; supply its recipients, destinations, documents, method and dates only after service.

After a ruling

Obtain a copy of the entered ruling and ask the clerk about distribution to the identified record custodians, including the Department of Revenue where applicable. Section 311.326 controls the effect and confidentiality of the official records; do not assume a private database or a separate matter disappears. Officials may retain records needed to enforce the one-expungement limit.

Stop and obtain individual legal help

The driver record shows any suspension, revocation or refusal entry the participant cannot explain.

Any out-of-state licence, conviction, suspension or revocation.

The participant holds a commercial driver licence or was driving a commercial motor vehicle at the time of the violation.

The conviction was under a city or county ordinance rather than under § 311.325 itself.

The participant is unsure whether the violation was their first.

Any later alcohol-related conviction, including a drink-driving matter, which would also be its own track.

The participant has already used the one expungement available under this section.

The court sets a contested hearing or the prosecuting or city attorney opposes.

The participant is not a United States citizen or there is any immigration consequence.

The participant is asking because of a professional licence, a firearms question or a federal employment application.

Review fixture notice

These sample facts are synthetic. Do not file this review packet. A build creates no commercial or participant-delivery authority.